

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ JUN 26 2014 ★

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

BROOKLYN OFFICE

CARLTON CRAIG,

COMPLAINT

Plaintiff,

JURY TRIAL DEMANDED

-against-

THE CITY OF NEW YORK, Police Officers MICHAEL BUTLER (Shield #2535) and JOHN DOES (1-3) Individually and in their Official Capacities, the names "JOHN DOE" being fictitious as the true names are not presently known,

Defendants.

CV 14 3961

KUNTZ, J.

BLOOM, M.J.

Plaintiff, CARLTON CRAIG, by and through his attorneys, **THE LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC**, as and for his Complaint, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution and of rights secured under the laws and Constitution of the State of New York and the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391(b), in that this is the District in which the claim arose.

U.S. DISTRICT COURT
IN CLERKS OFFICE

JUN 26 2014

U.S. DISTRICT COURT
IN CLERKS OFFICE

1808

CV 14

BLOOM, M.J.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff, CARLTON CRAIG, is, and has been, at all relevant times, a resident of Kings County, New York.

7. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a municipal entity duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

9. At all times relevant to the action herein, defendant THE CITY OF NEW YORK hired, screened, trained, instructed, managed and supervised its police officers.

10. Defendant Police Officers MICHAEL BUTLER (Shield #2535) and JOHN DOES (1-3) are and were at all times relevant herein, duly appointed and acting officers, servants, employees and agents acting under the supervision of the New York City Police Department, a municipal agency of THE CITY OF NEW YORK. The defendants were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. The defendants are sued herein in

their official and individual capacities.

11. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

At all times herein mentioned, defendant CITY OF NEW YORK was under an obligation to use reasonable care in the hiring, training, retention, and supervision of its employees.

FACTS

14. On or about October 6, 2012, at approximately 11:50A.M., Plaintiff, CARLTON CRAIG, was lawfully present at or near 16415 Jamaica Avenue, Queens, New York.

15. At that time and place, the Plaintiff walking at or near 16415 Jamaica Avenue, Queens, New York, when defendants MICHAEL BUTLER, and NYPD officers presently known as "JOHN DOES" (1-3), came out of a police van and jumped on Plaintiff CARLTON CRAIG demanding that Plaintiff place his hands against a wall.

16. Defendant, MICHAEL BUTLER then began to violently and illegally search Plaintiff CARLTON CRAIG, and "JOHN DOE" 1 immediately placed Plaintiff CARLTON CRAIG in handcuffs that were excessively tight, while "JOHN DOES" 2 and 3 failed to intervene while Plaintiff was aggressively subdued.

17. When Plaintiff asked why he was being arrested, he was yelled at by the defendant officers and was told to "shut up." Defendant "JOHN DOE" 1 then grabbed Plaintiff's shirt in a hostile manner and attempted to rip it off. When "JOHN DOE" 1 failed to rip Plaintiff's shirt off, defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (2-3) then immediately started to beat Plaintiff CARLTON CRAIG, punching and kicking him violently,

causing Plaintiff's earrings to be ripped out, which resulted in bleeding from his ears.

18. At no time on October 6, 2012 did Plaintiff CARLTON CRAIG commit any crime or violation of law.

19. At no time on October 6, 2012 did defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) possess probable cause to arrest Plaintiff CARLTON CRAIG.

20. At no time did Plaintiff CARLTON CRAIG use any physical threat or intimidation toward the defendant officers whatsoever nor did he have the physical ability to, as he was immediately placed in handcuffs by the defendant officers.

21. At no time on October 6, 2012 did defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiff CARLTON CRAIG.

22. At no time on October 6, 2012 did Defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) possess probable cause to arrest Plaintiff CARLTON CRAIG.

23. At no point did Plaintiff CARLTON CRAIG resist arrest and at no point was force used necessary, let alone the actual force that was used by Defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) on Plaintiff CARLTON CRAIG.

24. Thereafter, the defendant officers transported Plaintiff CARLTON CRAIG to a nearby police precinct where he was kept for a prolonged period of time without any reason or explanation as to why he was detained or kept in custody.

25. In connection with Plaintiff's arrest, the defendant officers MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney's Office.

26. Specifically, defendants MICHAEL BUTLER falsely, knowingly, and maliciously alleged that, *inter alia*, Plaintiff was resisting arrest, obstructing governmental administration and

engaged in disorderly conduct. At no time did the defendant officer MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) have any evidence that Plaintiff CARLTON CRAIG committed any of these violations.

27. As a result of the conduct of defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3), Plaintiff CARLTON CRAIG was criminally charged with Resisting Arrest, Obstructing Governmental Administration and Disorderly Conduct.

28. As a direct result of his unlawful arrest and the unlawful acts of defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3), Plaintiff CARLTON CRAIG spent approximately twenty-four (24) hours in custody.

29. Despite defendants' actions, on March 3, 2014, the criminal proceedings against the Plaintiff were dismissed in their entirety after Plaintiff was required to make several appearances.

30. As a result of the foregoing, Plaintiff, CARLTON CRAIG sustained, *inter alia*, physical injury, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

**FIRST CLAIM FOR RELIEF FOR DEPRIVATION
OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

31. Plaintiff CARLTON CRAIG repeats, reiterates, and realizes each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

32. All of the aforementioned acts of defendants, THE CITY OF NEW YORK, MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3), their agents, servants and employees, were carried out under the color of state law.

33. All of the aforementioned acts deprived Plaintiff, CARLTON CRAIG, of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. §1983.

34. The acts complained of were carried out by the aforementioned individual defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) in their

capacities as Police Officers with all the actual and/or apparent authority attendant thereto.

35. The acts complained of were carried out by the aforementioned individual defendants MICHAEL BUTLER and NYPD officers presently known as “JOHN DOES” (1-3) in their capacities as Police Officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

36. As a result of the acts of defendants MICHAEL BUTLER and NYPD officers presently known as “JOHN DOES” (1-3), Plaintiff CARLTON CRAIG was subjected to illegal search and seizure in violation of his Fourth Amendment rights under the United States Constitution.

37. Defendants MICHAEL BUTLER and NYPD officers presently known as “JOHN DOES” (1-3), collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

38. Plaintiff CARLTON CRAIG repeats, reiterates, and realizes each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

39. As a result of the conduct of defendants MICHAEL BUTLER and NYPD officers presently known as “JOHN DOES” (1-3), Plaintiff CARLTON CRAIG was subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.

40. As a result of the foregoing, plaintiff’s liberty was restricted, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
FOR EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

41. Plaintiff, CARLTON CRAIG, repeats, reiterates, and realizes each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

42. The force employed by the defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) was unreasonable given the facts and circumstances prevailing at the time and place of the above described incident.

43. Specifically, it was unreasonable for defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) to grab plaintiff, attempt to rip off his shirt, beat Plaintiff by punching and kicking him, all while the other defendant officers applied handcuffs that were excessively tight.

44. As a result of the foregoing, plaintiff, CARLTON CRAIG, suffered a violation of his constitutional rights.

FOURTH CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

45. Plaintiff CARLTON CRAIG, repeats, reiterates, and realleges each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.

46. Defendants, MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3), arrested, searched, and detained Plaintiff ANDREW PRIETO in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize plaintiff's liberty, well-being, and safety, and violate their constitutional rights.

47. The acts complained of were carried out by the aforementioned individual defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

48. The acts complained of were carried out by the aforementioned individual defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) in their capacities as police officers and officials pursuant to the customs, policies, usages, practices,

procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

49. Those customs, policies, patterns, and practices include, but are not limited to:
- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.

50. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- ii. arresting individuals regardless of probable cause in order to positively affect precinct-wide statistics;
- iii. falsifying evidence and testimony to support those arrests;
- iv. falsifying evidence and testimony to cover up police misconduct.

51. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute deliberate indifference to the safety, well-being and constitutional rights of Plaintiff, CARLTON CRAIG.

52. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

53. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

54. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, plaintiff was placed under arrest unlawfully.

55. Defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3), collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.

56. Defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3), collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.

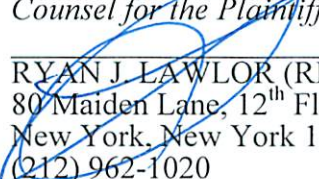
57. All of the foregoing acts by Defendants MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) deprived plaintiff of federally protected constitutional rights.

WHEREFORE, the Plaintiff CARLTON CRAIG respectfully requests judgment against defendants THE CITY OF NEW YORK, MICHAEL BUTLER and NYPD officers presently known as "JOHN DOES" (1-3) as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
June 25, 2014

Respectfully submitted,
**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff

By: 

RYAN J. LAWLOR (RL-7354)
80 Maiden Lane, 12th Floor
New York, New York 10038
(212) 962-1020

JS 44 (Rev. 1/2013)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS
CARLTON CRAIG(b) County of Residence of First Listed Plaintiff **KINGS**
(EXCEPT IN U.S. PLAINTIFF CASES)(c) Attorneys (Firm Name, Address, and Telephone Number)
LAW OFFICES OF MICHAEL S. LAMONSOFF
80 MAIDEN LANE - 12TH FLOOR
NEW YORK, NY 10038 212-962-1020

DEFENDANTS

THE CITY OF NEW YORK, Police Officers MICHAEL BUTLER
(Shield #2535), and "JOHN DOES" (1-3)County of Residence of First Listed Defendant
(IN U.S. PLAINTIFF CASES ONLY)NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF
THE TRACT OF LAND INVOLVED.Attorney in Clerk's Office
U.S. DISTRICT COURT E.D.N.Y.

★ JUN 26 2014 ★

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

☐ 1 U.S. Government
Plaintiff☒ 3 Federal Question
(U.S. Government Not a Party)☐ 2 U.S. Government
Defendant☐ 4 Diversity
(Indicate Citizenship of Parties in Item III)III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff
and One Box for Defendant)

Citizen of This State

☐ 1 Incorporated or Principal Place
of Business In This State

PTF DEF

Citizen of Another State

☐ 2 Incorporated and Principal Place
of Business In Another State☐ 4 ☐ 5Citizen or Subject of a
Foreign Country☐ 3 ☐ 3 Foreign Nation☐ 6 ☐ 6

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT

- ☐ 110 Insurance
☐ 120 Marine
☐ 130 Miller Act
☐ 140 Negotiable Instrument
☐ 150 Recovery of Overpayment
& Enforcement of Judgment
☐ 151 Medicare Act
☐ 152 Recovery of Defaulted
Student Loans
(Excludes Veterans)
☐ 153 Recovery of Overpayment
of Veteran's Benefits
☐ 160 Stockholders' Suits
☐ 190 Other Contract
☐ 195 Contract Product Liability
☐ 196 Franchise

TORTS

- PERSONAL INJURY**
☐ 310 Airplane
☐ 315 Airplane Product
Liability
☐ 320 Assault, Libel &
Slander
☐ 330 Federal Employers'
Liability
☐ 340 Marine
☐ 345 Marine Product
Liability
☐ 350 Motor Vehicle
☐ 355 Motor Vehicle
Product Liability
☐ 360 Other Personal
Injury
☐ 362 Personal Injury -
Medical Malpractice

- PERSONAL INJURY**
☐ 365 Personal Injury -
Product Liability
☐ 367 Health Care/
Pharmaceutical
Personal Injury
Product Liability
☐ 368 Asbestos Personal
Injury Product
Liability
PERSONAL PROPERTY
☐ 370 Other Fraud
☐ 371 Truth in Lending
☐ 380 Other Personal
Property Damage
☐ 385 Property Damage
Product Liability

FORFEITURE/PENALTY

- ☐ 625 Drug Related Seizure
of Property 21 USC 881
☐ 690 Other

BANKRUPTCY

- ☐ 422 Appeal 28 USC 158
☐ 423 Withdrawal
28 USC 157

PROPERTY RIGHTS

- ☐ 820 Copyrights
☐ 830 Patent
☐ 840 Trademark

LABOR

- ☐ 710 Fair Labor Standards
Act
☐ 720 Labor/Management
Relations
☐ 740 Railway Labor Act
☐ 751 Family and Medical
Leave Act
☐ 790 Other Labor Litigation
☐ 791 Employee Retirement
Income Security Act

SOCIAL SECURITY

- ☐ 861 HIA (1395ff)
☐ 862 Black Lung (923)
☐ 863 DIWC/DIWW (405(g))
☐ 864 SSID Title XVI
☐ 865 RSI (405(g))

FEDERAL TAX SUITS

- ☐ 870 Taxes (U.S. Plaintiff
or Defendant)
☐ 871 IRS—Third Party
26 USC 7609

OTHER STATUTES

- ☐ 375 False Claims Act
☐ 400 State Reapportionment
☐ 410 Antitrust
☐ 430 Banks and Banking
☐ 450 Commerce
☐ 460 Deportation
☐ 470 Racketeer Influenced and
Corrupt Organizations
☐ 480 Consumer Credit
☐ 490 Cable/Sat TV
☐ 850 Securities/Commodities/
Exchange
☐ 890 Other Statutory Actions
☐ 891 Agricultural Acts
☐ 893 Environmental Matters
☐ 895 Freedom of Information
Act
☐ 896 Arbitration
☐ 899 Administrative Procedure
Act/Review or Appeal of
Agency Decision
☐ 950 Constitutionality of
State Statutes

V. ORIGIN (Place an "X" in One Box Only)

☒ 1 Original
Proceeding☐ 2 Removed from
State Court☐ 3 Remanded from
Appellate Court☐ 4 Reinstated or
Reopened☐ 5 Transferred from
Another District
(specify)☐ 6 Multidistrict
Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

42 U.S.C. § 1983 and 42 U.S.C. § 1988

Brief description of cause:

false arrest, excessive force, illegal search and seizure

VII. REQUESTED IN
COMPLAINT:☐ CHECK IF THIS IS A CLASS ACTION
UNDER RULE 23, F.R.Cv.P.

DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☒ Yes ☐ NoVIII. RELATED CASE(S)
IF ANY

(See instructions):

JUDGE

DOCKET NUMBER

DATE

06/25/2014

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

MAG. JUDGE

465307566/

U.S. DISTRICT COURT
EASTERN DISTRICT OF NEW YORK
CLERK'S OFFICE

JUN 19 2014

BROOKLYN OFFICE

3881

CV 14

BLOOM M.J.

20140626

CERTIFICATION OF ARBITRATION ELIGIBILITY

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, Ryan Lawlor, counsel for Plaintiff Craig Carlton, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☒ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☐ the matter is otherwise ineligible for the following reason

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? No
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? No
- b) Did the events of omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County?

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

☒ Yes ☐ No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?

☐ Yes (If yes, please explain) ☒ No

I certify the accuracy of all information provided above.

Signature: 